Showing contexts for: **divorce petition** in Shri B R Vijay Kumar vs Smt. Nagarathna on 3 September, 2026

Context size: Small | Current | Large | Larger

7. The **Petitione**r also states that, during the pendency of the earlier **divorce petition**, the Respondent had made several false allegations before the media, impugning the character and doubting the fidelity of the **Petitione**r. The **Petitione**r states that he had obtained an interim order restraining the Respondent to not make any statement against him during the pendency of the earlier **divorce petition**.

8. The dispute in M.C.No.299/2013 was referred to mediation, wherein the couple had arrived at a Memorandum of Settlement dated 19.11.2014, as per which, the couple are stated to have amicably resolved their differences and expressed their desire to reunite. Among other terms, the **petitione**r had agreed to pay an amount of Rs. 30,000 per month to the Respondent. However, the **Petitione**r has alleged that the Respondent had used the threat of damaging the **Petitione**r's reputation in the media and had pressurised him to enter into this Memorandum of Settlement.

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b) of the Hindu Marriage Act, in M.C. No. 5779/2018, on 29.10.2018. It is out of this **divorce petition**, that the present proceedings have germinated.

19. It may also be added that even after the filing of the present **divorce petition**, much bitterness has transpired between the parties, involving other family

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members. The Respondent has filed a complaint dated 03.12.2018 against the **Petition**er filed before the Karnataka State Commission for Women; the Respondent has registered P.C.R. No. 9989/2018 alleging that the **Petition**er was involved in a bigamous relationship, which came to be dismissed for non-prosecution by the Respondent, vide order dated 09.12.2021; and, the **Petition**er's allegation that the Respondent had entered his home on 23.09.2018 assaulted his parents.

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influenced by other people to file the earlier **divorce petition**. Respondent also admits to the couple resuming cohabitation after the withdrawal of the earlier **divorce petition**. On this note, the Respondent also places reliance on certain public statements made by the **Petition**er in a certain television programme.

29. Respondent and the **Petition**er are stated to have lived together until the filing of the present **divorce petition**, i.e., 2018; which is also contrary to the **Petition**er's claim that the Respondent had driven him out of the matrimonial home in May, 2016. It is the case of the Respondent that she and the **Petition**er are living a happy life and that the **Petition**er has filed the present **divorce petition** without real reason; and as such, the Respondent has opposed the present **divorce petition** and has sought for restitution of conjugal rights under Section 9 of the Hindu Marriage Act.

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2016). The **Petition**er's driver, PW-2 herein, has also corroborated that pursuant to the **Petition**er being driven out of the matrimonial home in May, 2016, the **Petition**er has been residing separately.

59. On the other hand, the Respondent has deposed that the couple were residing together throughout the statutory period and until 2018, i.e., when the **Petition**er has filed the present **divorce petition**. The Respondent has also deposed that even after

the filing of the present **divorce petition**, the **Petition**er and the Respondent were in contact with each other. However, the Respondent has nowhere disputed the contents of the Mutual Consent Agreement. Apart from denying all contentions of the **Petition**er, the Respondent has failed to produce any convincing material on record to corroborate her stand that the parties have cohabited together with their matrimonial obligations intact during the entire statutory period. Whereas, the **Petition**er has placed corroboratory material in the form of the Mutual Consent Agreement and the examination of PW-2. Therefore, the